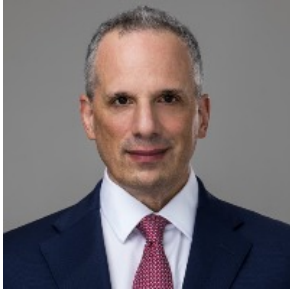




Ethan A. Brecher, Esq.

New York, New York



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Primary Areas of Expertise

Employment Disputes
Commercial Disputes
Financial Services
Compensation-Related Disputes
Restrictive Covenants
Breach of Contract

Current Employer-Title Law Office of Ethan A Brecher LLC - Owner

Profession Attorney, Arbitrator

Work History Owner, Law Office of Ethan A Brecher LLC, 2012 - Present; Partner/Associate, Liddle & Robinson LLP, 1991 - 2012; Student Intern, U.S. Attorney's Office, SDNY, Civil Division, 1991; Summer Law Clerk, USDJ SDNY Mary Johnson Lowe, 1990; Summer Law Clerk, NYS Attorney General's Office Investor Protection Bureau, 1989.

Experience Over 30 years of experience in labor, employment, commercial, and financial services disputes. Substantive experience includes harassment, wage and hour, wrongful termination, retaliation claims, non-competes, executive compensation, financial services, breach of fiduciary duty, corporate governance, and business litigation.

EMPLOYMENT

Handled matters involving hedge funds and start-ups in disputes concerning breach of contract, employee terminations, as well as claims involving non-solicitation and confidentiality agreements. Also handled claims involving discrimination, retaliation, and unequal pay under Title VII, ADEA, and the Equal Pay Act at the EEOC; represented parties in claims for discrimination under the New York State and New York City statutes prohibiting discrimination; handled claims for violations of Section 190 et seq. of the New York Labor Law (and similar wage statute claims from other states) involving claims for compensation and compensation discrimination; litigated a wage claim under the New York Labor Law before the NY State Department of Labor; served on the Second Circuit Pro

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Neutral ID : 5799469

The AAA's Rules provide the AAA with the authority to administer an arbitration including, arbitrator appointment and challenges, general oversight, and billing. Accordingly, arbitrations that proceed without AAA administration are not considered AAA arbitrations, even when the parties select an arbitrator who is on the AAA's Roster.

The information contained in this resume has been supplied solely by the individual arbitrator and may, or may not, be a complete recitation of their experience. The AAA assumes no responsibility for the content, completeness, accuracy, or reliability of the information contained in an arbitrator's resume. If you have any questions about an arbitrator's experience or background, you are encouraged to contact your case manager.

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Bono Panel and served as counsel in a Title VII claim on appeal; also served as counsel in investigations conducted by FINRA involving violations of FINRA's rules.

COMMERCIAL

Handled a range of complex commercial disputes, including breach of contract and breach of the implied covenant of good faith and fair dealing, default and enforcement of promissory notes and personal guarantees, conversion of a specifically identifiable fund, tortious interference with prospective business relations, and misappropriation of trade secrets. Matters also involved the valuation of privately held equity and warrants, the enforceability of forum selection clauses (including under foreign law), and significant evidentiary practice, including expert-admissibility (Frye) hearings and spoliation and adverse-inference determinations. One valuation proceeding entailed an extended evidentiary hearing on the fair market value of restricted common stock, with competing expert and lay testimony. Also handled breach of fiduciary duty, corporate governance, fraud, rescission, and negligent misrepresentation claims arising from investment solicitations.

Alternative Dispute Resolution Experience

Served as arbitrator in complex employment disputes involving wrongful termination and issues concerning the retention and loss of proprietary electronic information. Has addressed evidentiary challenges and the determination of injunctive and equitable relief. Served as a wing arbitrator on a three-member panel. Experience includes matters involving amounts in controversy ranging from less than \$40,000 to several hundred thousand dollars, including a matter exceeding \$1 million, as well as cases with undisclosed claim amounts.

Practice has been focused for 34 years representing employees and employers mostly in arbitrations and mediations involving: compensation disputes/breach of contract (bonuses, severance, stock and equity, commissions, crypto) at major securities firms/broker-dealers, hedge funds, technology start-ups, established technology firms, employment termination without cause, and breach of employment agreements; restrictive covenant disputes breach of non-compete, non-solicitation and confidentiality agreements; wrongful termination (including breach of contract and common law); defamation and tortious interference in the workplace/employment context; promissory notes signed by employees; regulatory investigations for FINRA rule violations; age and gender discrimination (including sexual harassment and retaliation); workplace disputes (e.g., a doctor being investigated for violation of workplace codes of conduct in the healthcare industry, trader for violating SEC rules that resulted in cancellation of deferred equity compensation, cancellation of compensation due to regulatory investigations); and whistleblower claims under Dodd-Frank/Sarbanes-Oxley.

Acted as counsel to claimants and respondents in dozens of arbitrations and mediations involving primarily employment termination, breach of employment agreements, failure to pay commissions, discrimination, retaliation, and

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compensation-related disputes, as well as non-competition, non-solicitation and confidentiality agreement issues, equity/stock issues, defamation, and wrongful termination. Experience includes federal court proceedings involving judicial review of arbitration awards.

Strives to conduct efficient, fair, and well-managed proceedings. Emphasizes preparation, clear procedural guidance, and reasoned decision-making based on the record and applicable law.

Technology Proficiency	Highly proficient in using Zoom, Microsoft Teams, and other virtual platforms to conduct hearings, conferences, and proceedings; readily available for virtual preliminary hearings, conferences, and formal hearings.
Education	NYU School of Law (J.D., Annual Survey of American Law, Articles Editor - 1991); Cornell University (B.A., cum laude, History – 1988).
Professional Licenses	Admitted to the Bar: New York (1992), Connecticut (1991); various Federal District Courts and Appellate Courts; U.S. Supreme Court (1996).
Professional Associations	The American Law Institute (Elected Member, 2013-present); New York State Bar Association; New York City Bar Association Labor & Employment Law and Arbitration Committees (2025-26).
	Prior Affiliations: NYU Center for Labor and Employment Law Advisory Board Member (2014-2019); U.S. Court of Appeals for the Second Circuit Pro Bono Panel (2012-2015); NYC Bar Association, Arbitration Committee Member (2004-2005).
Recent Publications & Speaking Engagements	FINRA Should Limit Brokerages' Post-Arbitration Appeals, Law360 (Feb. 3, 2021) Failing to Pay a FINRA Arbitration Award: The Good, The Bad and The Ugly, New York Law Journal (Oct. 4, 2017) Non-Mutual Issue Preclusion in Arbitration. NYU 67th Annual Conference on Labor (June 5-6, 2014) When to Defend Promissory Note Cases? That One in a Thousand Case, New York State Bar Association (March 2014) Compensation Claims in Security Industry Arbitration, Compensation, Work Hours and Benefits, Proceedings of the New York University 57th Annual Conference on Labor (Wolters Kluwer 2009) "Whistleblower Claims before the NASD and NYSE," published in Retaliation and Whistleblowers, Proceedings of the New York University 60th Annual Conference on Labor (Wolters Kluwer 2009). The Treasury Department's 'Compensation Czar', New York Law Journal (Oct. 13,

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2009)

Theft of a Trade Secret Is Now a Federal Crime, New York Law Journal (May 7, 2007)

Brokerages Deal With Question of Unclean Hands, New York Law Journal (April 18, 2002)

Putting the Reins on Employment Arbitration: Courts Safeguard Employee Rights, New York Law Journal (Aug. 24, 1999)

Use of Subpoenas in Arbitration, New York Law Journal (July 18, 1996)

**Locations Where Parties
Will Not be Charged for
Travel Expenses**

New York, New Jersey, Pennsylvania, Delaware, Rhode Island, Massachusetts, Connecticut

**Citizenship
Languages**

United States of America
English

Compensation

Hearing: \$650.00/Hr
Study: \$650.00/Hr
Travel: \$650.00/Hr
Cancellation Period: 0 Days
Comment:

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